

26VECV00559 26VECV00559

County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-07-27

Motion: DEFENDANT DOMINIC ANTHONY QUATTLEBAUM'S DEMURRER AND MOTION TO STRIKE TO PLAINTIFF
KELLI DAVIS' FIRST AMENDED COMPLAINT

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Case Number: 26VECV00559 Hearing Date: July 27, 2026 Dept: NWI

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

COUNTY
OF LOS ANGELES

KELLI DAVIS,

Plaintiff,

vs.

EZ PLUMBING & ROOTER, INC, et. al.,

Defendants.

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CASE

NO: 26VECV00559

[TENTATIVE]

ORDER RE:

DEFENDANT

DOMINIC ANTHONY QUATTLEBAUM'S DEMURRER AND MOTION TO STRIKE TO PLAINTIFF

KELLI DAVIS' FIRST AMENDED COMPLAINT

Dept.

I

HEARING

DATE: July 27, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: January 28, 2026

TRIAL

DATE: March 24, 2027

BACKGROUND

This case arises from a vehicle collision between Plaintiff Kelli Davis ("Plaintiff") and Defendant Anthony Quattlebaum ("Defendant") while Defendant was driving in the course and scope of his employment for Defendant EZ Plumbing & Rooter, Inc. ("EZ Plumbing"). (FAC, ¶ 14.) On July 9, 2025, Plaintiff was driving on the US-101 when Defendant began honking and flipping Plaintiff off when Defendant was driving. (Id. at ¶ 9.) Defendant began driving erratically, nearly crashing into Plaintiff multiple times, screaming racial slurs and threats, and stuck his hand out to hit Plaintiff's side rear view mirror. (Id. at ¶¶ 9-13.) Defendant drove past Plaintiff's vehicle, reversed, and lost control of his vehicle causing the left side of his vehicle to collide with the passenger side of Plaintiff's vehicle. (Id. at ¶ 14.) Defendant then parked his car, attempted to open Plaintiff's front passenger door, yelled racial slurs at Plaintiff, and flicked a lit cigarette at Plaintiff's vehicle. (Id. at ¶¶ 15-16.)

On January 28, 2026, Plaintiff filed a Complaint. On May 7, 2026, Plaintiff filed the operative First Amended Complaint ("FAC") alleging (1) motor vehicle negligence; (2) general negligence; (3) negligent supervision and hiring; and (4) intentional infliction of emotional distress.

On June 8, 2026, Defendant filed a Demurrer and Motion to Strike Plaintiff's FAC.

On June 23, 2026, Plaintiff filed an opposition to the Motion to Strike.

On June 29, 2026, Defendant filed a reply to Plaintiff's opposition to the Motion to Strike.

On June 29, 2026, Plaintiff filed a surreply to Defendant's reply to Plaintiff's opposition to the Motion to Strike.

On July 7, 2026, the Court continued the hearing until July 27, 2026 and ordered the parties to meet and confer.

On July 13, 2026, Plaintiff filed an opposition to the Demurrer.

On July 20, 2026 Defendant filed a reply to Plaintiff's opposition to the Demurrer.

On July 20, 2026, Defendant also filed a declaration stating that the parties met and conferred via phone call. (Berman Decl., ¶ 2.)

DEMURRER

I.

LEGAL

STANDARDS

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

"The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in section 430.30, to the pleading on any one or more of the following grounds... (e) the pleading does not state facts sufficient to constitute a cause of action. (f) The pleading is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible." (Code Civ. Proc. [AW13.1]§ 430.10.) "[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond." (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal. App. 5th[AW14.1] 677, 695.)

Where a demurrer is sustained, leave to amend must

be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id. [AW15.1]; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

II.

DISCUSSION

Defendant demurs to the Fourth Cause of Action for Infliction of Emotional Distress as alleged in the FAC.

A.

Untimeliness of
the Opposition

Plaintiff concedes that Plaintiff’s opposition to the demurrer was untimely filed due to a calendaring error and that Plaintiff did not realize this error until the parties met and conferred on June 10, 2026. (Fabi Behnam Decl., ¶¶ 3, 5.) Plaintiff contends that no party will be prejudiced as the opposition was filed 9 days before the continued hearing and Defendant will have a full opportunity to file a reply. (Id. at ¶¶ 6, 9.) The Court agrees that Defendant is not prejudiced by the late filing, as Defendant has a full chance to reply and did submit a reply. Thus, the Court uses its discretion to review the opposition on its merits, despite its untimely filing.

B.

Fourth Cause of
Action for Intentional Infliction of Emotional Distress

Defendant argues that Plaintiff’s cause of action for intentional infliction of emotional distress (“IIED”) is deficient because the FAC contains no allegations that Defendant held any position of authority, trust, or power over Plaintiff, and that Plaintiff and Defendant are strangers who encountered each other in a single, isolated incident on a public highway. Defendant also argues that Plaintiff’s allegations describe a single, isolated incident rather than a course of conduct designed to harass, intimidate, or terrorize Plaintiff over time. Moreover, Plaintiff alleges threats and racial slurs which

are not actionable unless accompanied by independent conduct that is extreme and outrageous. Finally, Defendant argues the FAC does not plead facts demonstrating severe distress, rather the allegations are vague and conclusory.

In opposition, Plaintiff argues that courts have recognized that racial slurs combined with aggravating factors and threats of physical harm can support a cause of action for IIED and that whether the conduct is outrageous is a question for a jury. Plaintiff further argues that a special relationship is not required for a cause of action for IIED and that an isolated act can constitute outrageous conduct for IIED. Finally, Plaintiff contends that she adequately pleads severe emotional distress with factual allegations.

A cause of action for intentional

infliction of emotional distress exists when there is “ ‘ (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.” (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050.) A defendant's conduct is “outrageous” when it is so “extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Id. at pp. 1050–1051.) The defendant's conduct must be “intended to inflict injury or engaged in with the realization that injury will result.” (Id. at p. 1051.) Liability for intentional infliction of emotional distress “does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities.” (Ibid.) Behavior may be considered outrageous if a defendant (1) abuses a relation or position that gives him power to damage the plaintiff's interests; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress. (Molko v. Holy Spirit Association (1988) 46 Cal.3d 1092, 1122, superseded by statute, internal citation omitted.)

First, the Court is not persuaded by Defendant's argument that Plaintiff needed to plead facts demonstrating a special relationship for the IIED claim. “A requirement of a special relationship does not appear in the California Supreme Court's formulation of the elements of IIED.” (Crouch v. Trinity Christian Center of Santa Ana, Inc. (2019) 39 Cal.App.5th 995, 1009.) To recover for negligent infliction of emotional distress, a plaintiff must prove a special relationship with the defendant. (Id. at p. 1010.) “It is only where there is a special relation between the parties,

as stated in § 48, that there may be recovery for insults not amounting to extreme outrage. (Rest.2d Torts, § 46, com. d, p. 73.)” (Id. at p. 1009.) Thus, the Court finds that Plaintiff need not plead facts demonstrating a special relationship to survive demurrer.

Next, the Court is not persuaded by Defendant’s argument that to state a cause of action for IIED, there must be more than one isolated incident. Defendant cites to *Kiseskey v. Carpenters’ Trust for So. California* (1983) 144 Cal.App.3d 222, to support his contention. However, Kiseskey’s discussion of whether plaintiffs’ allegations were part of a “continuous course of conduct” was examined to determine when the statute of limitations began to run. (Id. at p. 231.) In fact, while discussing whether the threats Plaintiff received were sufficient to state a cause of action for IIED, the court stated: “Each of these statements taken alone, or considered together as part of a course of conduct, needs no delicate weighing in order to conclude that it constitutes outrageous conduct.” (Id. at p. 229.) Thus, the Court does not find that Kiseskey stands for the proposition that Plaintiff must allege continuous conduct to state a claim for IIED.

The Court agrees that allegations of mere threats, without more, are insufficient to state a cause of action for IIED. Here, Plaintiff alleges more than just threats. The FAC states:

“On or about the date and time alleged herein, Defendant Quattlebaum intentionally engaged in extreme and outrageous conduct toward Plaintiff while the parties were traveling on a public freeway. Specifically, Defendant Quattlebaum screamed racist remarks at Plaintiff, used racial slurs, and made threatening statements toward Plaintiff, including threats of physical harm, while operating his vehicle in close proximity to Plaintiff’s vehicle.” (FAC, ¶¶ 43-44.)

The FAC alleges threats, insults, and physical contact intended to physically harm Plaintiff. Moreover, after Defendant collided with Plaintiff, Plaintiff alleges that Defendant continued his verbal threats by yelling racial slurs and that Defendant got into a struggle with Plaintiff while trying to open her door without Plaintiff’s consent and then flicked a lit cigarette at Plaintiff’s vehicle. (Id. at ¶¶ 15-16.) Considering the totality of Defendant’s actions, including racial slurs, threats, colliding with Plaintiff’s car, forcibly trying to open Plaintiff’s door, and flicking a lit cigarette at the car, the Court finds that these allegations are sufficient to

plead extreme or outrageous conduct.

Finally, the Court considers the argument as to severe emotional distress. “[T]o state a cause of action for intentional infliction of emotional distress the plaintiff is required to show severe emotional distress resulting from outrageous conduct on the part of the defendant.” (Kiseskey, supra, 144 Cal.App.3d at p. 231.) Severe emotional distress means “emotional distress of such substantial quantity or enduring quality that no reasonable man in a civilized society should be expected to endure it.” (Ibid.) A mere momentary or transitory emotional distress is insufficient to constitute severe emotional distress. (Ibid.)

A plaintiff, however, may recover for emotional distress alone without any resulting physical disability.

(Hailey v. California

Physicians' Service

(2007) 158 Cal.App.4th 452, 476.) The cause of action should plead facts demonstrating the nature, extent or duration of the alleged emotional distress. (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.)

The FAC states: “At all relevant times, Plaintiff was placed in reasonable fear for her personal safety and the safety of others on the roadway. As a direct and proximate result of Defendant Quattlebaum’s conduct, Plaintiff suffered severe emotional distress, including but not limited to fear, anxiety, humiliation, shock, and ongoing emotional suffering. Plaintiff’s emotional distress was substantial and enduring, not trivial or transitory.” (FAC, ¶¶ 47-48.) These allegations are sufficient at the pleading stage and Defendant’s demurrer to the fourth cause of action for IIED is overruled.

MOTION TO STRIKE

I. LEGAL STANDARD

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Id., § 436.) The grounds for

moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.)

II. DISCUSSION

Defendant

moves to strike punitive damages from paragraphs 50 and 51 and the prayer for relief within the FAC.

Here,

the prayer for relief requests punitive damages. (FAC, Prayer, section 2.) However, the request for punitive damages is only alleged in the fourth cause of action for IIED. Specifically, at paragraphs 50 and 51. (FAC, ¶¶ 50-51.) Because the Court has overruled Defendant's Demurrer as to the fourth cause of action, Defendant's Motion to Strike punitive damages from that cause of action is denied.

Accordingly,

Defendant's Motion to Strike is denied.

III.

CONCLUSION

The Court OVERRULES Defendant's Demurrer to the Fourth Cause of Action.

The

Court DENIES Defendant's Motion to Strike Punitive Damages.

Moving party to give notice.

Dated: July
27, 2026

Hon. Karen Moskowitz

Judge
of the Superior Court